

CASE STRATEGY UPDATE TECHVENTURE V CLOUDAXIS

Reference: CSU-TV-2026-05-04

Date: May 4, 2026

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Status: Current as of May 4, 2026

Executive Summary

TechVenture has a strong multi-ground breach case against CloudAxis. The strongest elements are the confirmed data loss, expired ISO 27001 certificate, and the IT forensics evidence that contradicts CloudAxis's force-majeure defense. The case is at a critical point: the May 6 deadline for CloudAxis's root cause analysis and the May 9 executive call will determine whether the dispute resolves commercially or escalates to formal proceedings.

Current Positions

TechVenture position: Multi-ground material breach supporting termination and full recovery of documented costs. Strong evidence base on availability breach, data loss, certificate expiry, and migration notice failure.

CloudAxis position: Disputes material breach characterization, claims force-majeure cyber-threat defense, accepts limited SLA credit only, disputes data loss quantum, challenges notification timeline.

Evidence Strength Assessment

- IT forensics backup log evidence: STRONG (machine-generated timestamps)
- ISO 27001 certificate expiry: VERY STRONG (independently verifiable)
- Migration pre-scheduling evidence: STRONG (CloudAxis's own records)
- Financial impact assessment: MEDIUM (internal estimates, needs third-party support)
- Regulatory notification obligation: MEDIUM (Act 63-2004 analysis pending)

Critical Upcoming Actions and Deadlines

- May 6, 2026: CloudAxis response deadline evaluate adequacy of cure
- May 8, 2026: Confirm data restoration status
- May 9, 2026: Executive negotiation call present settlement term sheet
- May 10, 2026: Internal decision on regulatory notification
- May 12, 2026: Mediation session if May 9 call unsuccessful
- May 15, 2026: Regulatory filing deadline if confirmed required
- May 20, 2026: Arbitration trigger if mediation fails

Recommended Next Actions

- 1) URGENT: Obtain external regulatory counsel opinion by May 6
- 2) URGENT: Review CloudAxis root cause analysis when received on May 6
- 3) Confirm attendance for May 9 executive call
- 4) Finalize settlement term sheet for May 9 presentation
- 5) Book mediation center in Tunis for May 12 as contingency
- 6) Preserve all forensics evidence in write-once secure storage
- 7) Brief TechVenture CEO on settlement authority limits before May 9

Risk Rating: HIGH

Case Priority: HIGH

Next review date: May 6, 2026 (after CloudAxis deadline)